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File No: EXP202301146

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 19, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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Procedure No: EXP202301146 (PS/0184/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 12/07/22, Mr. B.B.B. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against Mr. A.A.A., with ID: ***NIF.1 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complainant filed a complaint regarding the receipt of commercial emails, particularly the one received on 12/07/22, having expressly requested his desire not to receive any more commercial communications.

The complainant provides the following documentation with the complaint:

- Provides a copy of the email received on 10/25/22 from the email address info@oppositio.es, containing an advertising message.
- Provides a copy of an email sent on 10/25/22 to the address info@oppositio.es in which it can be read:

RE: Subscription cancellation

B.B.B. <***EMAIL.1>

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To: info@oppositio.es

From: B.B.B.

Sent: Tuesday, October 25, 2022 9:26

To: info@oppositio

Subject: Subscription cancellation

Good morning, I am not a user nor am I registered on the Oppositio.es website nor will I be. I do not want to receive any more emails with information, please, or I will be forced to take appropriate measures. Thank you, best regards. (And fix the unsubscribe link).

- Provides a copy of the email received on 12/07/22 from the email address info@oppositio.es, containing an advertising message.
- The complainant identifies as responsible for the mailings www.oppositio.es

SECOND: On 02/01/23, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint filed, in accordance with Article 65 of the LPDGDD, upon

appreciating possible rational indications of a violation of the regulations within the scope of the competencies of the Spanish Agency for Data Protection.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the control authorities in Article 58.1 of the GDPR and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

- The domain oppositio.es is registered in the name of OPPOSITIO, with identification G58653031.
- In the "Legal Notice" of the website oppositio.es, OPPOSITIO is identified as responsible for this site, with no NIF or other identifying data, and as the only contact information, they indicate the email address info@oppositio.es.
- The website has a privacy policy that provides the email address where one can exercise opposition or request the revocation of consent info@oppositio.es.

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- The IP addresses that identify the originating computer of the reported promotional emails are assigned to the entities REGISTER IT S.P.A. and DADA S.P.A., the former located in Bergamo (Italy) and the latter located in Florence (Italy). Both entities have been requested for information regarding the user who was assigned the corresponding IP address at the date and time of sending the messages. The first entity responded to the request asking for additional data and informing that local regulations, as applicable, only allow the requested information to be provided to the judicial authority. The second entity returned the request via postal service due to "incorrect address."
- The emails received by the complainant contain a link to unsubscribe from the subscription. This link is a hyperlink to the email address "info@oppositio" (mailto: info@oppositio), which is an incorrect email address as it lacks a domain. The complete email address (info@oppositio.es) is provided for exercising data protection rights in the Privacy Policy.

FOURTH: On 10/03/23, a written request for information was sent to the responsible parties of the website www.oppositio.es.

FIFTH: On 10/04/23, this Agency received a written response to the request made to the responsible parties of the aforementioned website, in which they state, regarding the reported facts, the following:

- The person responsible for the processing carried out by oppositio.es, and in particular those related to the reported commercial communications, is A.A.A., with DNI ***NIF.1.
- They state that the complainant registered on the website providing, in the registration form, the contact to receive commercial information. They provide a screenshot of the registration data. They state that the complainant registered by completing the form visible at the address <https://oppositio.es/registrar/>, and checking the boxes for Terms and Conditions and Privacy Policy.
- The reason why the email was sent was solely to inform him, as a registered user on the website, of services, news, offers, and promotions, as specified in the Privacy Policy (<https://oppositio.es/politica-de-privacidad/>).

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- They state that the complainant requested to unsubscribe on 13/12/22, and that same day his unsubscription from the mailing list was processed. They provide a copy of the email sent on that date to the complainant informing him that they have processed his request and that he will no longer receive emails.
- Regarding the unsubscription request made by the complainant via email on 25/10/22 with the subject "Unsubscribe" in which he requests "Not to receive any more emails with information" and sent

to the address "info@oppositio," they state that they did not receive that email and that it would not have been possible to receive it because the recipient's email address is incomplete.

LEGAL GROUNDS

I-

Competence

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

II.-1

Classification of the possible infringement committed by the sending of emails with advertising messages having previously opposed it:

Article 21.1 of the LSSI states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited."

In this case, the complainant received an advertising message in his email account sent from the address info@oppositio.es on 25/10/22 containing commercial information. That same day, he forwarded to the address info@oppositio.es the request not to receive any more advertising emails. However, on 07/12/22, the complainant received another email in his account sent from the address info@oppositio.es containing commercial information regarding products and services that the responsible party offers through the website www.oppositio.es.

II.-2

Proposal for sanction for the sending of commercial communications having previously opposed it.

Therefore, in accordance with the evidence available at this time, and without prejudice to what results from the instruction, the facts presented could

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to assume the violation of Article 21.1 of the LSSI by the respondent for sending a promotional email after the complainant opposed receiving electronic communications of this type.

The aforementioned infringement is classified as "minor" in Article 38.4.d) of said regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic means when the requirements established in Article 21 are not met and does not constitute a serious infringement."

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

In accordance with these criteria, it is deemed appropriate to impose an initial sanction of €1,000 (one thousand euros) for the infringement of Article 21.1 of the LSSI regarding the sending of promotional emails after the complainant opposed receiving electronic communications of this type.

III.-1

Classification of the possible infringement committed

by the deficiency detected in the

email address provided to

exercise users' rights.

Article 21.2 of the LSSI states the following:

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion

of an email address or another valid electronic address where this right can be exercised, with the sending of communications that do not include such an address being prohibited.

In the present case, it has been verified that the link appearing in the promotional emails sent, to allow the user to unsubscribe or oppose receiving more promotional emails, redirects the user to an address "mailto: info@oppositio", lacking a domain and therefore invalid for exercising users' rights.

III.-2

Proposed sanction.

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In accordance with the evidence available at this time, and without prejudice to what results from the instruction, the facts presented could imply a violation of Article 21.2 of the LSSI by the entity being complained against for offering users an invalid email address to exercise their rights.

The aforementioned infringement is classified as "minor" in Article 38.4.d) of said regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic means when the requirements established in Article 21 are not met and does not constitute a serious infringement."

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

In accordance with these criteria, it is deemed appropriate to impose an initial sanction of €1,000 (one thousand euros) for the infringement of Article 21.2 of the LSSI for offering users an invalid email address to exercise their rights of opposition to receiving advertising.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

TO INITIATE: SANCTIONING PROCEDURE against Mr. A.A.A., with ID: ***NIF.1 for:

- Violation of Article 21.1 of the LSSI regarding the sending of a promotional email after opposing it.
- Violation of Article 21.2 of the LSSI for offering users an invalid email address to exercise their rights.

TO APPOINT: as Instructor Mr. R.R.R., and Secretary, if applicable, Ms. S.S.S., indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

TO INCORPORATE: into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

THAT: for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be:

- €1,000 (one thousand euros) for the violation of Article 21.1 of the LSSI.
- €1,000 (one thousand euros) for the violation of Article 21.2 of the LSSI.

The total sanction would be €2,000 (two thousand euros).

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NOTIFY: this agreement to initiate sanctioning proceedings to Mr. A.A.A., granting him a hearing period of ten working days to submit allegations and present any evidence he deems appropriate.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, if the sanction to be imposed is a fine,

he may acknowledge his responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure, which in this case amounts to 400 euros. With the application of this reduction, the sanction would be set at 1,600 euros, concluding the procedure with the imposition of this sanction.

Similarly, he may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will result in a 20% reduction of its amount, equivalent in this case to 400 euros. With the application of this reduction, the sanction would be set at 1,600 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for submitting allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 1,200 euros (one thousand two hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

If the option is taken to proceed with the voluntary payment of any of the amounts indicated above, it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which he is adhering.

Additionally, he must send the proof of deposit to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. Once this period has elapsed, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On May 23, 2023, the respondent has proceeded to pay the sanction in the amount of 1,200 euros making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted for submitting allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations will apply to the procedures that the Spanish Agency for Data Protection..."

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Data would have to be processed in the exercise of the powers attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction can be imposed alongside a non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202301146, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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